

г. 1792
April 4 1792

This provision may naturally be read and understood thus—“The whole number of the representatives of the United States shall not exceed one to every 30000 of the aggregate numbers of the United States; but if it should happen that the proportion of the numbers of any state to the aggregate numbers of the United States should not give to such state one representative—such state shall nevertheless have *one*. No state shall be without a representative.

There is nothing in the form of expression to confine the application of the ratio to the *several* numbers of the states. The mode of expression equally permits its application to their joint or *aggregate numbers*. The intent of inserting it is merely to determine a proportional limit which the number of the house of representatives shall not exceed. This is as well satisfied by resorting to the collective as to the separate population of the respective states.

There is therefore nothing in the last recited clause to controul or direct the sense of the first.

If it be said that the further process which apportions the residue among the states having the greatest remainders is the circumstance that renders the bill unconstitutional because it renders the representation not *strictly* according to *the respective numbers* of the states it may be answered—

That this is but a necessary consequence of the first principle.

As there would commonly be left, by the first process, an unapportioned residue of the total number, to be apportioned, it is of necessity that that residue should be distributed among the several states by some rule and none more equal or defensible can be found than that of giving a preference to the greatest remainders.

If this makes the apportionment not mathematically “according to the *respective numbers* of the several states” so neither would the opposite principle of construction.

Fractions more or less great would in this case also, and, in a greater degree, prevent a conformity of the proportion of representatives to numbers. The same objection would lie in this respect against both principles of construction; against that in the bill least.

Upon the whole then, The Bill *apportions* the Representatives among the several states *according to their respective numbers*; so as that the *number of representatives* does not *exceed* one for every 30000 persons *each state having at least one member*. It therefore performs every requisition of the constitution; and it will not be denied that it performs this in the manner most consistent with *equality*.

There appears therefore no room to say, that the bill is unconstitutional, though there may be another construction, of which the constitution is capable. In cases where two constructions may reasonably be adopted, and neither can be pronounced inconsistent with the public good, it seems proper that the legislative sense should prevail. The present appears to the Secretary clearly to be such a case.

Philadelphia April
4th 1792
Alex. Hamilton

ALS, George Washington Papers, Library of Congress; JCH Transcripts.

8. The word “be” has been taken from the JCH Transcripts.

Note: The annotations to this document, and any other modern editorial content, are copyright © Columbia University Press. All rights reserved.

SOURCE PROJECT	Hamilton Papers
TITLE	Alexander Hamilton to George Washington, 4 April 1792
AUTHOR	Hamilton, Alexander
RECIPIENT	Washington, George
DATE	4 April 1792
	Alexander Hamilton to George Washington, 4 April 1792, with introductory note
CITE AS	“Alexander Hamilton to George Washington, 4 April 1792,” <i>Founders Online</i> , National Archives,

<https://founders.archives.gov/documents/Hamilton/01-11-02-0189-0002>. [Original source: *The Papers of Alexander Hamilton*, vol. 11, *February 1792–June 1792*, ed. Harold C. Syrett. New York: Columbia University Press, 1966, pp. 228–230.]

The National Historical Publications and Records Commission (NHPRC) is part of the National Archives. Through its grants program, the NHPRC supports a wide range of activities to preserve, publish, and encourage the use of documentary sources, relating to the history of the United States, and research and development projects to bring historical records to the public.
